

Kamal Kumar vs Ut Of Andaman & Nicobar on 1 August, 2025

Central Information Commission

Baba Gangnath Marg, Munirka
, New Delhi - 110067

File Nos: CIC/UTOAN/A/2024/124765
CIC/UTOAN/A/2024/135236
CIC/UTOAN/A/2024/136104

Kamal Kumar /Appellant

VERSUS

The CPIO
Superintendent of Police,
South Andaman District,
Port Blair - 744101 /Respondent

Date of Hearing : 25.07.2025
Date of Decision : 31.07.2025

INFORMATION COMMISSIONER : Vinod Kumar Tiwari

The above-mentioned second appeals are clubbed together as the Appellant is common, subject-matter is similar in nature and hence are being disposed of through a common order.

CIC/UTOAN/A/2024/124765
Relevant facts emerging from appeal:

RTI application filed on : 27.12.2023
CPIO replied on : 16.05.2024
First appeal filed on : 07.02.2024
First Appellate Authority's order : 26.04.2024
2nd Appeal/Complaint dated : 01.08.2024

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Information sought

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1. The Appellant filed an (offline) RTI application dated 27.12.2023 seeking the following information:

"1) Provide information regarding total number of NCFIR lodged with or without complaint since 2005, 2006 within PS Aberdeen, PS Pahargoan and within the Police Stations under Ferrargung Tehsil with GD entry, Station House Officer Diary and Rowdies Sheeter when marked to different officials with name, no. of days of pendency with different officials with name, action taken report in each stages with concerned officials, still pending or disposed, FIR No., GR No., charge sheet filed or not since its parturition sine qua non required stare decisis for ad litem,

2) Provide copy of GD entry/ Ravangi Register/Dial 100 dated 24/12/2023 Police Officials entered in my premise at 6. 40 PM requires details of dairy no., dated, section imposed under Indian Penal Code, 1860; when marked to different officials with name, no. of days of pendency with different officials with name, action taken report in each stages with concerned officials, still pending or disposed, FIR No., OR No., charge sheet filed or not entered whether to murder, abduct my family members consisting of ladies and my teenage girl child or to implicate me in sexual harassment case or to commit sexual harassment against me or against my family or to implicate our family members in other case under the provisions of Indian Penal Code, 1860 consisting of altogether 511 section with various amendment and to further provide the details of section under the provisions of Indian Penal Code, 1860 in which myself and my female family members conjecture to be implicated as Police Officials res gestae have been consistently entering my residential house as the onus probandi is upon the Police Officials or Public Information Officer discharging the duties of Superintendent of Police, South Andaman also to prove.

3) Provide information regarding total number of NCFIR lodged with or without the complaint of D Lavanya Sundari since 2005, 2006 against accused within PS Aberdeen, PS Paharguan and within the Police Stations under Ferrargung Tehsil with GD entry, Station House Officer Diary and Rowdies Sheeter, when marked to different officials with name, no. of days of pendency with different officials with name, action taken report in each stages with concerned officials since its parturition sine qua non required stare decisis for ad litem.

4) Provide probono publica copy of complaint, GD Entry, Station House Officer Diary and Rowdies Sheeter regarding cognizable offences suo moto compromised or kept pending by Public Servants váz. Shri. Santosh R. Shenoy Sub Inspector and Shri Jabbar, Sub Inspector under the Superintendent Of Police, South Andaman District since their posting at South Andaman District whether ipso jure marked or not to different officials with name, no. of days of pendency with different officials with name, action taken report in each stages with concerned officials, still pending or disposed with Ravangi Register/Dial 100, FIR No., GR No., charge sheet filed or not sine qua non required stare decisis for ad litem

5) Provide probono publica information regarding total number of NCFIR lodged against D Lavanya Bundari since 2005, 2006 within PS Aberdeen, PS Paharyoan and

within the Police Stations under Ferrargung Tehsil with GD Entry, Station House Officer Diary and Rowdies Sheeter when marked to different officials with name, no. of days of pendency with different officials with name, action taken report in each stages with concerned officials, still pending or disposed, FIR No., GR No., charge sheet filed or not since its parturition sine qua non required stare decisis for ad Idem.

6) Provide probeno publica copy of complaint, GD entry, Station House Officer Diary, Rowdies Sheeter regarding cognizable offences per incuriam compromised or kept pending by Public Servants viz. Shri. Jojo, Inspector; Shri. Dheeraj, Sub Inspector, Shri. Inderjit, Sub Inspector and Shri. R. K. Masumdar, Sub Inspector under the Superintendent Of Police, North and Middle Andaman since their posting at North and Middle Andaman whether ipse jure marked or not to different officials with name, no. of days of pendency with different officials with name, action taken report in each stages with concerned officials, still pending or disposed, GD entry Ravangi Register/Dial 100, FIR No., GR No., charge sheet filed or not sine qua non required stare decisis for ad litem.

7) Provide probeno publica only the details or certified copy of Daily Attendance Sheet, Station Leaving Permission of Department, entry made to and fro in Jirkatang, Middle Strait, 10 No., 03 No. Check Post, Ship ticket issued in respect of Public Servant Shri. P. K. Mazumder, Sub Inspector since his posting under the disposition of the Superintendent Of Police, Nerth and Middle Andaman District, Mayabunder.

8) Provide probono publica copy of complaint, OD entry. Station House Officer Diary and Rowdies Sheeter regarding cognizable offences per incuriam compromised or kept pending by Public Servants viz. Shri. Jojo, Inspector, Shri. Dheeraj, Sub Inspector, Shri. Inderjit, Sub Inspector and Shri. RK Mazumdar, Sub Inspector under the Police Administration since their appointment whether ipso jure marlend or not to different officials with name, no. of days of pendency with different officials with name, action taken report in each stages with concerned officials, still pending or disposed, GD entry/Ravangi Register/Dial 100, FIR No., OR No., charge sheet filed or not sine qaz non required stare decisis for ad litem

9) Provide probono publica copy of complaint, GD Entry, Station House Officer Diary and Rowdies Sheeter regarding cognizable offences ad libitum compromised or kept pending by Public Servants viz. Shri. Santosh R. Shenoy Sub Inspector, Shri. Jabbar, Sub Inspector, Smt. Nandini, Sub Inspector, Sati. Panchu, Sub Inspector and Smt. Jyothi, Head Constable under Police Administration since their appointment whether ipso jure when marked or not to different officials with name, no. of days of pendency with different officials with name, action taken report in each stages with concerned officials, still pending or disposed, OD entry/ Ravangi Register/Dial 100, FIR. No, OR No., charge sheet filed or not sine qua non required stare decisis for ad litem."

2. Having not received any response from CPIO, the appellant filed a First Appeal dated 07.02.2024. The FAA vide its order dated 26.04.2024, held as under.

"The First Appellate Authority has carefully considered the appellant's RTI application and the reply given thereon by the PIO/SP (D)SA. After careful examination of the RTI file and available records, the undersigned has directed SP(D) SA to provide the information related to the appellant free of cost.

The appeal is accordingly disposed of."

3. The CPIO furnished a reply to the Appellant on 16.05.2024 stating as under:

"1. The information sought by the applicant cannot be provided under the ambit of section 8(1)(j) of RTI Act 2005.

2. As per the report of SHO PS Aberdeen, no such GD entry is made out in this regard.

3 to 9. The information sought by the applicant cannot be provided under the ambit of section 8(1)(j) of RTI Act 2005."

CIC/UTOAN/A/2024/135236 Relevant facts emerging from appeal:

RTI application filed on	:	21.08.2024
CPIO replied on	:	18.09.2024
First appeal filed on	:	23.09.2024
First Appellate Authority's order	:	Not on record
2nd Appeal/Complaint dated	:	01.11.2024

Information sought:

4. The Appellant filed an (offline) RTI application dated 21.08.2024 seeking the following information:

"1) Provide the certified copy of Judgment dated 02 Dec. 2020 passed by the Apex Court in Special Leave Petition (Criminal) No. 3543 of 2020 (Shri. Paramvir Singh Saini -Vs- Baljit Singh and Others) as enunciated in reply furnished by the Public Information Officer, Superintendent of Police, South Andaman District on 31/7/2024 vide No. SPIDISA/RTI/113/2024/3708 and to confirm whether provisions of Clause

(j) of sub section (1) of section 8 as mentioned in the reply of Public Information Officer discussed or not in the pari materia matter of the Criminal Original Jurisdiction CRL. M.P. No. 16086 of 1997 in CRL. M.P. No. 4201 of 1997 (Shri. Dilip K. Basu Vs The State of West Bengal & Others), Special Leave Petition (Criminal) No. 2302 of 2017 (Shafi Mohammed Vs State of Himachal Pradesh); Karnail Singh -Ve

State of Haryana, (2009) B SCC 539, Ziyauddin Burhanuddin Bukhari Vs Brijmohan Ramdass Mera & Ors. (1976) 2 SCC 17, Ram Singh & Orn -Vn-Col. Ram Singh, 1985 (Supp) SCC 211; R. Va Maqsud Ali, (1965) 2 ALL ER 464 and R-Vs Robson, (1972) 2 ALL ER 699 and American Law as noted in American Jurisprudence 2d (Vol. 291 Page 494, Tukaram S. Dighole-Vs-

Manikrao Shivaji Kokute, (2010) 4 SCC 329, Tumaso Bruno & Anr. Va State of Uttar Pradesh, (2015) 7 SCC 178; Mohd. Ajmal Amir Kasab Vs State of Maharashtra (2012) 9 SCC 1 and State (NCT of Delhi) Vs Navjot Sandhu, (2005) 11 SCC

2) Provide probono publica only the CCTV footage with audio of my tenant. D. Lavanya Sundari from all the cameras installed at all entry and exit points, main gate of Police Station, all corridors, lobby/reception area, all verandas/outhouses, Inspector's room, Sub Inspector's room, areas outside the lock up room, station hall, in front of the Police Station compound, outside washroom/toilets, Duty Officer's room, back part of the Police Station etc. mandated by the Apex Court in his judgment dated 02/12/2020 in the matter of Special Leave Petition (Criminal) No. 3543 of 2020 (Paramvir Singh Saini -Vs- Baljit Singh & Others) whereby threshold admissibility with regard to Section 65 8 of the Indian Evidence Act, relevancy, Contemporaneous certification, compatibility. Most standard of proof of its authenticity, accuracy to be more stringent than other documentary evidences and production of electronic evidence subject to safe guards adopted by the Court, working condition of CCTV Cameras, continuous monitoring of maintenance and upkeep of CCTV and its equipment, CCTV data maintenance, backup of data, fault recitation securing, preservation and storage of CCTV Camera footage with a for a peed of 18 months, authenticity, prevent manipulation, digital images to be retained on State's server as permanent record and re-mail back to the Police Station lor further use videography to be done on Best effort basis, set up of Central Server, Forensic Science laboratory report, preparation of standard operating system, oversight mechanism whereby an independent committee can study CCTV camera footages and periodically publish report of its observations to send monthly report the State Level Oversight to send monthly report to the State Level Oversight Committee (SLOC), adverse inference against prosecution under section 114(g) of the Indian Evidence Act, 1872 for withholding of best evidence etc. also discussed in furtherance of the Fundamental Rights of each citizen of India which includes the applicant as well guaranteed under Article 21 of the Constitution Of India regarding which information required whether my tenant D. Lavanya Sundari entered with cause or not required CCTV footage of Dated 14/08/2024 from 3.30 PM to 4.30 PM whereof provided with new Legal Size Paper (21.59 X 35.56 Cm.) and Xerox facility in the PS. Aberdeen to write complaint whilst SHO was in the premise with footage of the officials who provided the Legal Size Paper and provide Xerox facility et cetera guided her ipso facto is a State Sponsored heinous act against the applicant ex facie is in violation of Human Rights whether report of Human Right Violation against the applicant intimated in monthly report to the State Level Oversight Committee (SLOC) and District Level Oversight Committee required information with HASH Value Analysis of Hard Disc Drive in comparison to data recovered and to be provided to the applicant, Meta Data Details, Chain of Custody, Contemporaneous Certification, Login Credentials or Password of Custodian of device, Daubert Tests, Perfect working condition of hardware, software and accessories; Date and Time Stamp, clone copy of CCTV footage with Forensic Analysis Report including comparison of frames of D. Lavanya Sundari the Pseudo IPS

Cadre from the footage of 14/08/2024, JPEG Image data of the day, EXIF File data of the day, IPTC File data of the day, 8 BIM files data of the day, ICC files data of the day, GPS Coordinate of the day, Image Metadata details of the day along with CCTV footage, make, model & serial number of Hard Drive; make, model & serial number of DVR/NVR; Analog or Digital, Digital, HASH value of Random Access Memory, the make, serial number and model of the computer, the details of the software used for the transfer of the data, system information, details of printer, details of download. the evidence detailing a computer program used to produce electronic record, elaborate description of the hardware of the computer, information about the operation of the system, security measures, anti malware, firewall system, access control, measures taken by the proponent to ensure the accuracy of the input as well as data processing and output, procurement, acquisition, identification, preservation, collection, examination, analysis, presentation, photos of physical evidence, documentation of date and time, make and model of CCTV system and the number of cameras and other technical details, number and type of computer, identities of the system administrator and its user, identification and documentation of the nature and capacity of media including external media and any other storage media, details of OS and its version, memory capacity of the storage device by immediately stopping the future recording so as to loss of relevant footage, status of the exact Real time clock including camera time, IP Chip time or DVR time, extract of relevant footage in its native format or the proprietary format of the manufactures, comparison of the original with the copy to be provided to the Applicant, mirror image by matching the HASH TEST analysis, digital signature of each devices with contemporaneous certification, brief description of steps taken during examination such string searches, graphics image searches and recovering deleted files, 'letter of authority, program, data entry process, the presence or absence of application controls over the electronic data processing system, presence or absence of system security, 'SINGER PROPOSAL', reliability of the system, reliability, integrity, accuracy and completeness of input data; reliability and security of the output. absence of transmission error, throughout the material part of the said period the system was operating properly, regular use, probative value. opinion of examiner, subcutaneous memory, HASH value of data transfer to CD or DVD from DVR, Data Cable details, lawful possession, Control and Safe Custody; Proper Operation during the ordinary course of activity, duration details, details of multiple copy, HASH value of Post acquisition and at the time of acquisition, details of CMOS time, of all the cameras to be stored in Faraday Bag as mandated by the Apex Court in plethora of Judgment regarding providing certificate along with certificate prescribed under Section 63 of the Bharatiya Sakshya Adhiniyam, 2023 as mandated under Section 63 of the Bharatiya Sakshya Adhiniyam, 2023 and with Note of caution to file Affidavit if refused 'that the information could be denied to the Parliament hence shall be also denied to applicant' as mandated under the proviso of section 8 of the 'Right to Information Act, 2005 furthermore reasons to be provided for its Administrative or quasi judicial decisions to the affected persons as defined under clause (i) sub section (8) of section 7; clause (d) sub section (1) of section 4 and sub section (6) of section 19 of the Right to Information Act, 2005; to file Affidavit under clause (c) of sub section (3) of section 18 and with a request to preserve the electronic records as mandated under section 7 of Information and Technology Act, 2000 read with section 241 of the Bharatiya Nyaya Sanhita, 2023.

3) In the matter of Criminal Original Jurisdiction CRL. M.P. No. 16086 of 1997 In CRL. M.P. No. 4201 of 1997 (Shri. Dilip K. Basu -Vs- The State of West Bengal & Others) the Apex Court on 24th

July, 2015 held that the Union Territories of Andaman & Nicobar has filed the compliance Affidavit whereby deposed that CCTV cameras installed in most of the Police Stations hence requested to provide the information regarding total no. of camera installed with Number of Digital Video Recorder (DVR) installed with Accessories; total expenditure incurred for installation of CCTV Camera with Digital Video Recorder (DVR) and accessories in the PS Aberdeen, copy of proposal, annual plan, fund allocation, quotations, tender, agreement with contractor, terms and condition, quality check, work order, execution, bill, completion certificate etc. at that relevant point of time and with Note of caution to file Affidavit if refused 'that the information could be denied to the Parliament hence shall be also denied to applicant' as mandated under the proviso of section 8 of the 'Right to Information Act, 2005 furthermore reasons to be provided for its Administrative or quasi judicial decisions to the affected persons as defined under clause (i) sub section (8) of section 7; clause (d) sub section (1) of section 4 and sub section (6) of section 19 of the Right to Information Act, 2005; to file Affidavit under clause (c) of sub section (3) of section 18 and with a request to preserve the electronic records as mandated under section 7 of Information and Technology Act, 2000 read with section 241 of the Bharatiya Nyaya Sanhita, 2023.

4) In the matter of Special Leave Petition (Criminal) No. 3543 of 2020 (Shri. Paramvir Singh Saini -Vs- Baljit Singh and Others) the Apex Court on 02nd Dec. 2020 has held that compliance Affidavit and Action Taken Reports has been filed by the Union Territories of Andaman & Nicobar till 24/11/2020 whereby it was held that CCTV systems must be equipped with night vision and must necessarily consist of audio as well as video footage with internet facility which provide clear image resolutions and audio with digital video recorder and the data to be preserved for 18 months hence it is requested to provide information that the CCTV camera and Digital Video Recorder (DVR) installed with accessories before the instant order were replaced whether auctioned or not and also provide the details of order of auction with date and cost incurred, with date of auction, name of firm contested the bidding process with address, copy of proposal, annual plan, fund allocation, quotations, tender, agreement with contractor, terms and condition, quality check, work order execution, bill, completion certificate etc. with name of Station House Officer, PS Aberdeen and Superintendent of Police, South Andaman under the tenure the CCTV Camera, Digital Video Recorder (DVR) and Accessories replaced or destroyed and with Note of caution to file Affidavit if refused 'that the information could be denied to the Parliament hence shall be also denied to applicant' as mandated under the proviso of section 8 of the 'Right to Information Act, 2005 furthermore reasons to be provided for its Administrative or quasi judicial decisions to the affected persons as defined under clause (i) sub section (8) of section 7; clause (d) sub section (1) of section 4 and sub section (6) of section 19 of the Right to Information Act, 2005; to file Affidavit under clause (c) of sub section (3) of section 18 and with a request to preserve the electronic records as mandated under section 7 of Information and Technology Act, 2000 read with section 241 of the Bharatiya Nyaya Sanhita, 2023.

5) In the matter of Special Leave Petition (Criminal) No. 3543 of 2020 (Shri. Paramvir Singh Saini -Vs- Baljit Singh and Others) the Apex Court on 02nd Dec. 2020 has held that compliance Affidavit and Action Taken Reports has been filed by the Union Territories of Andaman & Nicobar till 24/11/2020 whereby it was held that CCTV systems must be equipped with night vision and must necessarily consist of audio as well as video footage with internet facility which provide clear image

resolutions and audio with digital video recorder and the data to be preserved for 18 months wherefrom cameras to be installed at all entry and exit points, main gate of Police Station, all corridors, lobby/reception area, all verandas/outhouses, Inspector's room, Sub Inspector's room, arcas outside the lock up room, station hall, in front of the Police Station compound, outside washroom/toilets, Duty Officer's room, back part of the Police Station etc. hence it is requested to provide information regarding total no. of camera installed with Number of Digital Video Recorder (DVR) installed with Accessories; total expenditure incurred for installation of CCTV Camera, Central Server, Forensic Science Laboratory, preparation of standard operating system, oversight mechanism whereby an independent committee can study CCTV camera footages and periodically publish report of its observations, to send monthly report to the State Level Oversight Committee (SLOC) required with copy of proposal, annual plan, fund allocation, quotations, tender, agreement with contractor, terms and condition, quality check, work order, execution, bill, completion certificate etc. in the PS Aberdeen at that relevant point of time and with Note of caution to file Affidavit if refused that the information could be denied to the Parliament hence shall be also denied to applicant' as mandated under the proviso of section 8 of the 'Right to Information Act, 2005 furthermore reasons to be provided for its Administrative or quasi judicial decisions to the affected persons as defined under clause (i) sub section (8) of section 7; clause (d) sub section (1) of section 4 and sub section (6) of section 19 of the Right to Information Act, 2005; to file Affidavit under clause (c) of sub section (3) of section 18 and with a request to preserve the electronic records as mandated under section 7 of Information and Technology Act, 2000 read with section 241 of the Bharatiya Nyaya Sanhita, 2023.

6) Provide information Probono publica that my tenant D. Lavanya Sundari entered with cause or not in the PS Aberdeen on 14/08/2024 from 3.30 PM to 4.30 PM whereof provided with new Legal Size Paper (21.59 X 35.56 Cm.) and Xerox facility in the PS. Aberdeen to write complaint in presence of Police Officials in the premise hence required with complaint diary number with date with name of complainant and accused, name of official who provided new Legal Size Paper, Xerox facility and guidance; no. of days of pendency with different officials with name, action taken report in each stages with concerned officials, still pending or disposed, GD entry/ Ravangi Register/Dial 100, FIR No., GR No., charge sheet filed or not and with Note of caution to file Affidavit if refused that the information could be denied to the Parliament hence shall be also denied to applicant' as mandated under the proviso of section 8 of the 'Right to Information Act, 2005 furthermore reasons to be provided for its Administrative or quasi judicial decisions to the affected persons as defined under clause (i) sub section (8) of section 7; clause (d) sub section (1) of section 4 and sub section (6) of section 19 of the Right to Information Act, 2005; to file Affidavit under clause (c) of sub section (3) of section 18 and with a request to preserve the electronic records as mandated under section 7 of Information and Technology Act, 2000 read with section 241 of the Bharatiya Nyaya Sanhita, 2023.

7) In the matter of Special Leave Petition (Criminal) No. 3543 of 2020 (Shri. Paramvir Singh Saini -Vs- Baljit Singh and Others) the Apex Court on 02nd Dec. 2020 has held that compliance Affidavit and Action Taken Reports has been filed by the Union Territories of Andaman & Nicobar till 24/11/2020 whereby it was held that threshold admissibility with regard to Section 65 B of the Indian Evidence Act, relevancy, Contemporaneous certification, compatibility, standard of proof of its authenticity, accuracy to be more stringent than other documentary evidences and production of

electronic evidence subject to safe guards adopted by the Court, working condition of CCTV Cameras, continuous monitoring of maintenance and upkeep of CCTV and its equipment, CCTV data maintenance, backup of data, fault rectification; securing, preservation and storage of CCTV Camera footage with audio for a period of 18 months, authenticity, prevent manipulation, digital images to be retained on State's server as permanent record and re-mail back to the Police Station for further use, videography to be done on Best Effort' basis, set up of Central Server, Forensic Science Laboratory Report, preparation of standard operating system, oversight mechanism whereby an independent committee can study CCTV camera footages and periodically publish report of its observations, to send monthly report to the State Level Oversight Committee (SLOC), adverse inference against prosecution under section 114(g) of the Indian Evidence Act, 1872 for withholding of best evidence etc. also discussed in furtherance of the Fundamental Rights of each citizen of India guaranteed under Article 21 of the Constitution Of India hence requested to provide the electronic evidence as available in the Hard Disc Drive, Random Access Memory, Login Credentials of Custodian of CCTV camera, Digital Video Recorder of CCTV Camera and its accessories etc. at the time as available before the direction of Apex Court made in Special Leave Petition (Criminal) No. 3543 of 2020 (Shri. Paramvir Singh Saini -Vs- Baljit Singh and Others) and facility of re- mail back to the Police Station for further use, required with HASH Value Analysis of Hard Disc Drive in comparison to data recovered and to be provided to the applicant, Meta Data Details, Chain of Custody, Contemporaneous Certification, Login Credentials or Password of Custodian of device, Daubert Tests, Perfect working condition of hardware, software and accessories; Date and Time Stamp, clone copy of CCTV footage with Forensic Analysis Report including comparison of frames of individual with CCTV footage since installation, JPEG Image data each day, EXIF File data each day, IPTC File data day, 8 BIM files data each day, ICC files data each day, GPS Coordinate each day, Image Metadata details of each day along with CCTV footage. make, model & serial number of Hard Drive; make, model & serial number of DVR/NVR; Analog or Digital, HASH value of Random Access Memory, the make, serial number and model of the computer, the details of the software used for the transfer of the data, system information, details of printer, details of download, the evidence detailing a computer program used to produce electronic record, elaborate description of the hardware of the computer, information about the operation of the system, security measures, anti malware, firewell system, access control, measures taken by the proponent to ensure the accuracy of the input as well as data processing and output. procurement, acquisition, identification, preservation, collection. examination, analysis, presentation, photos of physical evidence, documentation of date and time, make and model of CCTV system and the number of cameras and other technical details, number and type of computer, identities of the system administrator and its user, identification and documentation of the nature and capacity of media including external media and any other storage media, details of OS and its version, memory capacity of the storage device by immediately stopping the future recording so as to loss of relevant footage, status of the exact Real time clock including camera time, IP Chip time or DVR time, extract of relevant footage in its native format or the proprietary format of the manufactures, comparison of the original with the copy to be provided to the Applicant, mirror image by matching the HASH TEST analysis, digital signature of each devices with contemporaneous certification, brief description of steps taken during examination such string searches, graphics image searches and recovering deleted files, 'letter of authority, program, data entry process, the presence or absence of application controls over the electronic data processing system, presence or absence of system

security, 'SINGER PROPOSAL. reliability the system, reliability, integrity, accuracy and completeness of input data; reliability and security of the output, absence of transmission error, throughout the material part of the said period the system was operating properly, regular use, probative value, opinion of examiner, subcutaneous memory, HASH value of data transfer to CD or DVD from DVR, Data Cable details, lawful possession, Control and Safe Custody; Proper Operation during the ordinary course of activity, duration details, details of multiple copy, HASH value of Post acquisition and at the time of acquisition, details of CMOS time, of all the cameras to be stored in Faraday Bag as mandated by the Apex Court in plethora of Judgment regarding providing certificate along with certificate prescribed under Section 63 of the Bharatiya Sakshya Adhiniyam, 2023 as mandated under Section 63 of the Bharatiya Sakshya Adhiniyam, 2023 and with Note of caution to file Affidavit if refused 'that the information could be denied to the Parliament hence shall be also denied to applicant' as mandated under the proviso of section 8 of the 'Right to Information Act, 2005 furthermore reasons to be provided for its Administrative or quasi judicial decisions to the affected persons as defined under clause (i) sub section (8) of section 7; clause (d) sub section (1) of section 4 and sub section (6) of section 19; to file Affidavit under clause (c) of sub section (3) of section 18 of the Right to Information Act, 2005 and with a request to preserve the electronic records as mandated under section 7 of Information and Technology Act, 2000 read with section 241 of the Bharatiya Nyaya Sanhita, 2023.

8) Provide the information that if information is not available as sought for at serial no. 7 of this RTI application which is required to re- mail back to the Police Station for further use and to be preserved if not, then whether FIR lodged against SHO PS Aberdeen for destroying the electronic evidence under the provisions of section 7 of Information and Technology Act, 2000 read with section 241 of the Bharatiya Nyaya Sanhita, 2023 read with sub section (1) & (2) of section 20 and section 21 of the 'Right to Information Act, 2005' and with Note of caution to file Affidavit if refused 'that the information could be denied to the Parliament hence shall be also denied to applicant' as mandated under the proviso of section 8 of the 'Right to Information Act, 2005 furthermore reasons to be provided for its Administrative or quasi judicial decisions to the affected persons as defined under clause (i) sub section (8) of section 7; clause (d) sub section (1) of section 4 and sub section (6) of section 19 of the Right to Information Act, 2005; to file Affidavit under clause (c) of sub section (3) of section 18 and with a request to preserve the electronic records as mandated under section 7 of Information and Technology Act, 2000 read with section 241 of the Bharatiya Nyaya Sanhita, 2023..

9) Provide the information that if information is not available as sought for at serial no. 7 of this RTI application which is required to be re- mail back to the Police Station for further use and to be preserved if not, then whether the present SHO or his predecessor viz. Mr. Jojo, Inspector and Mr. Girish, Inspector have ever informed the same to the State Level Oversight Committee (SLOC) and District Level Oversight Committee as mandated by the Apex Court Judgment dated 02nd Dec. 2020 in the matter of Special Leave Petition (Criminal) No. 3543 of 2020 (Shri. Paramvir Singh Saini -Vs- Baljit Singh and Others) and if not informed whether any disciplinary proceeding initiated against them or any FIR lodged against them and with Note of caution to file Affidavit if refused 'that the information could be denied to the Parliament hence shall be also denied to applicant' as mandated under the proviso of section 8 of the 'Right to Information Act, 2005

furthermore reasons to be provided for its Administrative or quasi judicial decisions to the affected persons as defined under clause (i) sub section (8) of section 7; clause (d) sub section (1) of section 4 and sub section (6) of section 19 of the Right to Information Act, 2005; to file Affidavit under clause (c) of sub section (3) of section 18 and with a request to preserve the electronic records as mandated under section 7 of Information and Technology Act, 2000 read with section 241 of the Bharatiya Nyaya Sanhita, 2023.

10) Provide the information as mentioned at serial no. 3, 4 & 5 of the instant RTI application whether orders/ tender/quotations/auction notices, copy of proposal, annual plan, fund allocation, agreement with contractor, terms and condition, quality check, work order, execution, bill, completion certificate etc. published in the website as mandated under section 4 of 'Right to Information Act, 2005' communicated vide Office Memorandum Dated 07th Nov. 2019 in F.No. 1/6/2011-IR by the Government of India, Ministry of Personnel, Public Grievances and Pensions, Department of Personnel and Training, North Block, New Delhi and with Note of caution to file Affidavit if refused that the information could be denied to the Parliament hence shall be also denied to applicant' as mandated under the proviso of section 8 of the 'Right to Information Act, 2005 furthermore reasons to be provided for its Administrative or quasi judicial decisions to the affected persons as defined under clause (i) sub section (8) of section 7; clause (d) sub section (1) of section 4 and sub section (6) of section 19 of the Right to Information Act, 2005; to file Affidavit under clause (c) of sub section (3) of section 18 and with a request to preserve the electronic records as mandated under section 7 of Information and Technology Act, 2000 read with section 241 of the Bharatiya Nyaya Sanhita, 2023.

11) Provide the Name of the authority with designation who issued completion. certificate for installation, removal and again re installation of CCTV Camera as mentioned at serial no. 3, 4 & 5 of the instant RTI application and with Note of caution to file Affidavit if refused 'that the information could be denied to the Parliament hence shall be also denied to applicant' as mandated under the proviso of section 8 of the 'Right to Information Act, 2005 furthermore reasons to be provided for its Administrative or quasi judicial decisions to the affected persons as defined under clause (i) sub section (8) of section 7; clause (d) sub section (1) of section 4 and sub section (6) of section 19 of the Right to Information Act, 2005; to file Affidavit under clause (c) of sub section (3) of section 18 and with a request to preserve the electronic records as mandated under section 7 of Information and Technology Act, 2000 read with section 241 of the Bharatiya Nyaya Sanhita, 2023.

12) Provide the Name of the authority with designation who requested for installation, removal and again re installation of CCTV Camera as mentioned at serial no. 3, 4 & 5 of the instant RTI application and with Note of caution to file Affidavit if refused 'that the information could be denied to the Parliament hence shall be also denied to applicant' as mandated under the proviso of section 8 of the 'Right to Information Act, 2005 furthermore reasons to be provided for its Administrative or quasi judicial decisions to the affected persons as defined under clause (i) sub section (8) of section 7; clause (d) sub section (1) of section 4 and sub section (6) of section 19 of the Right to Information Act, 2005; to file Affidavit under clause (c) of sub section (3) of section 18 and with a request to preserve the electronic records as mandated under section 7 of Information and Technology Act, 2000 read with section 241 of the Bharatiya Nyaya Sanhita, 2023."

5. The CPIO furnished a reply to the Appellant on 18.09.2024 stating as under:

"Sub: - Rejection of RTI Application dated 21/08/2024-reg. Reference is invited to your RTI application dated 21/08/2024. In this context, kindly refer to the Decision of the Central Information Commission, New Delhi being File No. CIC/UTOAN/A2023/147313 dated 06/08/2024 which pertains to your own case wherein the Central Information Commission has observed that your RTI application dated 21/06/2023 was not in consonance with Rule 3 of the Right to Information rules, 2012.

Whereas the said recent Decision dated 06/08/2024 was made well before filing of the above RTI application dated 21/08/2024 but once again you have been failed to comply the word limit of 500 words in terms of Rule 3 of the Right to Information Rules, 2012 and hence, your RTI application dated 21/08/2024 is rejected being not in consonance with Rule 3 of the Right to Information Rules, 2012."

6. Being dissatisfied, the appellant filed a First Appeal dated 23.09.2024. The FAA order is Not on record.

CIC/UTOAN/A/2024/136104 Relevant facts emerging from appeal:

RTI application filed on	:	02.07.2024
CPIO replied on	:	18.07.2024
First appeal filed on	:	05.07.2024
First Appellate Authority's order	:	20.08.2024
2nd Appeal/Complaint dated	:	11.11.2024

Information sought:

7. The Appellant filed an (offline) RTI application dated 03-02-2024 seeking the following information:

"1) Provide the copy of complaint made by me on 03/06/2024 at PS Aberdeen along with G. D. Entry made, Dairy Number, date and investigated in my resident with respect to criminal trespass with sharp weapon in my residence, damage the window glass by large stone and hammer and also caused damage to the property and theft committed by D. Lavanya Sundari so as to produce before the Hon'ble Court.

2) Provide the copy of G. D. Entry made on 04/06/2024 at PS Aberdeen on the complaint of my tenant Shri. Sunil Kumar Gupta and investigated in my tenanted premise by Mr. A. Raju, Hawaldar with respect to theft of gold chain and gold ring committed by D. Lavanya Sundari so as to produce before the Hon'ble Court and with Note of caution to file Affidavit if refused. that the information could be denied to the Parliament hence shall be also denied to applicant as mandated under the proviso of

section 8 of the 'Right to Information Act, 2005.

3) Provide information of complaint made by my wife Smt., Sunita Gupta on 03/06/2024 at Emergency Number dial 911 wherefrom Pink Police investigate in my resident with respect to criminal trespass with sharp weapon in my residence, damage the window glass by large stone and hammer and caused damage to the property and theft committed by D. Lavanya Sundari whereby G. D. Entry made by Pink Police from Police Station, Women Cell along with report generated after that so as to produce before the Hon'ble Court.

4) Provide copy of complaint made by me on 16/06/2024 at PS Aberdeen along with G. D. Entry made and investigated or not in my resident with respect to criminal trespass in my residence committed by D. Lavanya Sundari under the influence of liquor and drugs and also use abusive language, intimidation, wrongful restraint, breach of peace with criminal intention to murder the family members and also to implicate in rape case so as to produce before the Hon'ble Court.

5) Provide copy of entire documents with respect to complaint made by me on 03/06/2024, 16/06/2024 and by my tenant Shri. Sunil Kumar Gupta on 05/06/2024 at PS Aberdeen along with G. D. Entry made and investigated in my resident with respect to criminal trespass with sharp weapon in my residence, damage the window glass by large stone and hammer and caused damage to the property and theft committed by D. Lavanya Sundari and again also criminal trespass in my residence committed by D. Lavanya. Sundari under the influence of liquor and drugs and also use abusive language, intimidation, wrongful restraint, breach of peace with criminal intention to murder the family members and also to implicate in rape case so as to produce in the Hon'ble Court and with Note of caution to file Affidavit if refused. information could be denied to the Parliament hence shall be that the also denied to applicant as mandated under the proviso of section 8 of the 'Right to Information Act, 2005.

6) Provide copy of entire documents with respect to complaint made by me on 14/06/2024 and 01/07/2024 before the Superintendent of Police, South Andaman District whereby criminal trespass with sharp weapon in my residence, damage the window glass by large stone and hammer and caused damage to the property and theft committed by D. Lavanya Sundari and again also criminal trespass in my residence committed by D. Lavanya Sundari under the influence of liquor and drugs and also use abusive language, intimidation, wrongful restraint, breach of peace 'with criminal intention to murder the family members and also to implicate in rape case so as to produce in the Hon'ble Court and with Note of caution to file Affidavit if refused that the information could be denied to the Parliament hence shall be also denied to applicant as mandated under the proviso of section 8 of the 'Right to Information Act, 2005.

7) Provide Probono Publica total no. of cognizable offence required with date, Diary No., G. D. Entry with date and remarks; Dial 100, Case Diary, name, father's name, residence, when marked to different officials with name, action taken report in each stages with concerned officials, number of days of pendency with different officials with name, still pending or disposed, FIR No., GR No., Charge Sheet filed or not along with copy of complaint ad libitum compromised and kept pending by Public authority Shri. Abhishek Mondal, Sub Inspector without the permission of the Hon'ble Court since his posting resultantly harassed the poor citizens, caused mental agony, depression, economic loss to poor people for writing RTI applications, economic loss to poor people to compel to file Voluminous Reminders again and again, wastage of time and also whether according to the guidelines issued by the Hon'ble Supreme Court Of India in Writ Petition (Criminal) No. 68 of 2008 (Lalita Kumari -Vs- Govt. of U.P & Others) mandates registration of FIR under section 154 of the Code of Criminal Procedure, 1973 whereby preliminary enquiry should be made in time bound manner and in any case should not exceed 07 days and ipso jure action must be taken against Shri. Abhishek Mondal, Sub Inspector under section 166 A of the Indian Penal Code, 1860 who do not register the FIR if information received by him discloses Cognizable Offence et cetera one most glaring example is complaint dated 19/10/2023 filed by the applicant regarding theft of Mobile Phone is also ad libitum compromise by him with the accused without the permission of the Hon'ble Court to be provided so as to produce before the Hon'ble Court; and with Note to file Affidavit if refused that the information could be denied to the Parliament hence shall be also denied to applicant as mandated under the proviso of section 8 of the 'Right to Information Act, 2005.

8) Provide the photographs along with the CCTV footage of full day prior and after to related to the incident dated 03/06/2024 already collected by Shri. Vinod Kumar, Head Constable on 05/06/2024 whether destroyed, burnt, thrown or not so as to produce before the Hon'ble Court and with Note to file Affidavit if refused - that the information could be denied to the Parliament hence shall be also denied to applicant as mandated under the proviso of section 8 of the 'Right to Information Act, 2005.

9) Provide Probono Publica total no. of cognizable offence required with date, Diary No., G. D. Entry with date and remarks; Dial 100, Case Diary, name, father's name, residence, when marked to different officials with name, action taken report in each stages with concerned officials, number of days of pendency with different officials with name, still pending or disposed, FIR No., GR No., Charge Sheet filed or not along with copy of complaint ad libitum compromised and kept pending by Public authority Mr. S. Tejeshwar Rao, Sub Inspector without the permission of the Hon'ble Court since his posting resultantly harassed the poor citizens, caused mental agony, depression, economic loss to poor people for writing RTI applications, economic loss to poor people to compel to file Voluminous Reminders again and again, wastage of time and also whether according to the guidelines issued by the Hon'ble Supreme Court Of India in Writ Petition (Criminal) No. 68 of 2008 action must be taken

against Shri. Vinod Kumar, Head Constable under section 166 A of the Indian Penal Code, 1860 who do not register the FIR if information received by him discloses Cognizable Offence so as to produce before the Hon'ble Court; and with Note of caution to file Affidavit if refused that the information could be denied to the Parliament hence shall be also denied to applicant as mandated under the proviso of section 8 of the 'Right to Information Act, 2005.

10) Provide Probono Publica total no. of cognizable offence vis a vis to be corroborated with electronic evidence required with date, Diary No., G. D. Entry with date and remarks; Dial 100, Case Diary, name, father's name, residence, when marked to different officials with name, action taken report in each stages with concerned officials, number of days of pendency with different officials with name, still pending or disposed, FIR No., GR No., Charge Sheet filed or not along with copy of complaint ad libitum compromised and kept pending by Public authority Shri. Vinod Kumar, Head Constable without the permission of the Hon'ble Court since his posting resultantly harassed the poor citizens, caused mental agony, depression, economic loss to poor people for writing RTI applications, economic loss to poor people to compel to file Voluminous Reminders again and again, wastage of time and also whether according to the guidelines issued by the Hon'ble Supreme Court Of India in Writ Petition (Criminal) No. 68 of 2008 (Lalita Kumari -Vs- Govt. of U.P & Others) mandates registration of FIR under section 154 of the Code of Criminal Procedure, 1973 whereby preliminary enquiry should be made in time bound manner and in any case should not exceed 07 days and ipso jure action must be taken against Shri. Vinod Kumar, Head Constable under section 166 A of the Indian Penal Code, 1860 who do not register the FIR if information received by him discloses Cognizable Offence so as to produce before the Hon'ble Court; and with Note of caution to file Affidavit if refused that the information could be denied to the Parliament hence shall be also denied to applicant as mandated under the proviso of section 8 of the 'Right to Information Act, 2005.

12) Provide Probono Publica total no. of cognizable offence vis a vis to be corroborated with electronic evidence required with date, Diary No., G. D. Entry with date and remarks; Dial 100, Case Diary, name, father's name, residence, when marked to different officials with name, action taken report in each stages with concerned officials, number of days of pendency with different officials with name, still pending or disposed, FIR No., GR No., Charge Sheet filed or not along with copy of complaint ad libitum compromised and kept pending by Public authority Mr. S. Tejeshwar Rao, Sub Inspector without the permission of the Hon'ble Court since his posting resultantly harassed the poor citizens, caused mental agony, depression, economic loss to poor people for writing RTI applications, economic loss to poor people to compel to file Voluminous Reminders again and again, wastage of time and also whether according to the guidelines issued by the Hon'ble Supreme Court Of India in Writ Petition (Criminal) No. 68 of 2008 (Lalita Kumari -Vs- Govt. of U.P & Others) mandates registration of FIR under section 154 of the Code of Criminal

Procedure, 1973 whereby preliminary enquiry should be made in time bound manner and in any case should not exceed 07 days and ipso jure action must be taken against Mr. S. Tejeshwar Rao, Sub Inspector under section 166 A of the Indian Penal Code, 1860 who do not register the FIR if information received by him discloses Cognizable Offence so as to produce before the Hon'ble Court; and with Note of caution to file Affidavit if refused that the information could be denied to the Parliament hence shall be also denied to applicant as mandated under the proviso of section 8 of the 'Right to Information Act, 2005.

13) Provide Probono Publica total no. of cognizable offence vis a vis to be corroborated with electronic evidence required with date, Diary No., G. D. Entry with date and remarks; Dial 100, Case Diary, name, father's name, residence, when marked to different officials with name, action taken report in each stages with concerned officials, number of days of pendency with different officials with name, still pending or disposed, FIR No., GR No., Charge Sheet filed or not along with copy of complaint ad libitum compromised and kept pending by Public authority Shri. Abhishek Mondal, Sub Inspector without the permission of the Hon'ble Court since his posting resultantly harassed the poor citizens, caused mental agony, depression, economic loss to poor people for writing RTI applications, economic loss to poor people to compel to file Voluminous Reminders again and again, wastage of time and also whether according to the guidelines issued by the Hon'ble Supreme Court Of India in Writ Petition (Criminal) No. 68 of 2008 (Lalita Kumari -Vs- Govt. of U.P & Others) mandates registration of FIR under section 154 of the Code of Criminal Procedure, 1973 whereby preliminary enquiry should be made in time bound manner and in any case should not exceed 07 days and ipso jure action must be taken against Shri. Abhishek Mondal, Sub Inspector under section 166 A of the Indian Penal Code, 1860 who do not register the FIR if information received by him discloses Cognizable Offence et cetera one most glaring example is complaint dated 19/10/2023 filed by the applicant regarding theft of Mobile Phone kept pending by him or compromised without the permission of the Hon'ble Court so as to produce before the Hon'ble Court; and with Note of caution to file Affidavit if refused that the information could be denied to the Parliament hence shall be also denied to applicant as mandated under the proviso of section 8 of the 'Right to Information Act, 2005.

14) Provide Probono Publica total no. of cognizable offence vis a vis to be corroborated with electronic evidence in which false information filed before the Hon'ble Court required with date, Diary No., G. D. Entry with date and remarks; Dial 100, Case Diary, name, father's name, residence, when marked to different officials with name, action taken report in each stages with concerned officials, number of days of pendency with different officials with name, still pending or disposed, FIR No., GR No., Charge Sheet filed or not along with copy of complaint ad libitum compromised and kept pending by Public authority Shri. Abhishek Mondal, Sub Inspector since his posting resultantly harassed the poor citizens, caused mental agony, depression, economic loss to poor people for writing RTI applications,

economic loss to poor people to compel to file Voluminous Reminders again and again, wastage of time and also whether according to the guidelines issued by the Hon'ble Supreme Court Of India in Writ Petition (Criminal) No. 68 of 2008 (Lalita Kumari -Vs-

Govt. of U.P & Others) mandates registration of FIR under section 154 of the Code of Criminal Procedure, 1973 whereby preliminary enquiry should be made in time bound manner and in any case should not exceed 07 days and ipso jure action must be taken against Shri. Abhishek Mondal, Sub Inspector under section 166 A and section 193 of the Indian Penal Code, 1860 who do not register the FIR if information received by him discloses Cognizable Offence et cetera one most glaring example is complaint dated 19/10/2023 filed by the applicant regarding theft of Mobile Phone is also ad libitum compromise by him with the accused without the permission of the Hon'ble Court to be provided so as to produce before the Hon'ble Court; and with Note of caution to file Affidavit if refused that the information could be denied to the Parliament hence shall be also denied to applicant as mandated under the proviso of section 8 of the 'Right to Information Act, 2005.

15) Provide the copy of Original General Diary as maintained under Section 44 of the Police Act read with Form 12.38 of the Andaman and Nicobar Police Manual, 1963 as amended upto 1984 dispatched to the Assistant Superintendent of Police through the Circle Inspector or otherwise each day and the Carbon Copy as maintained in the PS Aberdeen each day both to be provided in respect of Point No. 01-05, 07 & 08-14 so as to produce before the Hon'ble Court and with Note of caution to file Affidavit if refused, that the information could be denied to the Parliament hence shall be also denied to applicant as mandated under the proviso of section 8 of the 'Right to Information Act, 2005.

-16) Provide the copy of Opening Entry of General Diary as sent to the Assistant Superintendent of Police through the Circle Inspector or otherwise each day and the Carbon Copy as maintained in the PS Aberdeen each day with sanctioned and present strength of official with number and names of persons with allocation of duties detailed to them with signature each day of PS Aberdeen since dated 02/06/2024 till date as mandated in the Andaman and Nicobar Police Manual, 1963 as amended upto 1984 to be provided to be produced before the Hon'ble Court and with Note of caution to file Affidavit if refused that the information could be denied to the Parliament hence shall be also denied to applicant as mandated under the proviso of section 8 of the 'Right to Information Act, 2005.

17) Provide the copy of duly paginated Case Diary, Police Diary under section 172 of the Code of Criminal Procedure, 1973; First Information Book, Case Diary with regard to Cognizable Offence in which investigation already made by the Investigating Officer, Note Book maintained, Village Rosters, Petty Case Register, Quarterly Crime Abstract, Memo Book, Register of Property stolen, Weekly Station Crime Report, Weekly Diary of Sub Inspectors, Report of Station Writer, Village Crime Note Book Part IV, History Sheet, General Conviction Register, Crime Abstract, Village Crime Sheets, Surveillance Report, Search Reference Report, Personal Files, Continuous record of criminal history of individual, Night Patrol in towns, Report regarding prevention of injury to public property, Bad Character Roll 'B', Collection of Information Report, Prevention of Breach of Peace

Report, Rowdy Sheets, Bad Character Roll- 'A', Notes on Village, Action to prevent Cognizable Offence as mandated under the Andaman and Nicobar Police Manual, 1963 as amended upto 1984 with respect to all the matters as mentioned above be provided to produce before Hon'ble Court and with Note with caution to file Affidavit if refused that the information could be denied to the Parliament hence shall be also denied to applicant as mandated under the proviso of section 8 of the 'Right to Information Act, 2005.

18) Provide copy of all the cognizable offence with respect to the matters as mentioned above with names of the complainants, with names of all the persons arrested, the offence charged against them, the weapons or property of which the police have taken possession and the names of the witnesses who have been examined and in the case of a person arrested his name the number of the case in which arrested, the date of arrest and receipt in the station lock -up, the date and hour when forwarded to the Hon'ble Court and expenses, if any, incurred in feeding shall be noted by the In-Charge of Police Station by himself in the General Diary as sent to the Assistant Superintendent of Police through the Circle Inspector or otherwise each day and the Carbon Copy as maintained in the PS Aberdeen as mandated under para (d) of Form 12.38 of the Andaman and Nicobar Police Manual, 1963 as amended upto 1984 to be provided to produce before the Hon'ble Court and with Note of caution to file Affidavit if refused that the information could be denied to the Parliament hence shall be also denied to applicant as mandated under the proviso of section 8 of the 'Right to Information Act, 2005.

19) Ipso facto Form 13.22 under the Andaman and Nicobar Police Manual, 1963 as amended upto 1984 defines Grave Crimes' mandated that if theft of property worth Rs. 2000/- and over then the Officer In Charge of PS Aberdeen should send a copy of FIR by a special messenger as expeditiously as possible to the Circle Inspector, Assistant Superintendent of Police and Superintendent of Police whereby requested to provide information whether procedures have been followed or not and also whether according to the guidelines issued by the Hon'ble Supreme Court Of India in Writ Petition (Criminal) No. 68 of 2008 (Lalita Kumari -Vs- Govt. of U.P & Others) mandates registration of FIR under section 154 of the Code of Criminal Procedure, 1973 whereby preliminary enquiry should be made in time bound manner and in any case should not exceed 07 days and ipso jure action must be taken against erring officials under section 166 A of the Indian Penal Code, 1860 who omitted his obligatory duty to register the FIR if information received by him discloses Cognizable Offence to be produced before the Hon'ble Court et cetera one of the most glaring example is that complaint dated 19/10/2023 filed by the applicant regarding theft of Mobile Phone is also ad libitum compromise by Shri. Abhishek Mondal, Sub Inspector, PS Aberdeen with the accused without the permission of the Hon'ble Court to be provided so as to produce before the Hon'ble Court and with Note of caution to file Affidavit if refused that the information could be denied to the Parliament hence shall be also denied to applicant as mandated under the proviso of section 8 of the 'Right to Information Act, 2005.

20) Ex facie Form 12.3 under the Andaman and Nicobar Police Manual, 1963 as amended upto 1984 defines duty of Station House Officer envisages that the Officer In Charge of Police Station is responsible for preservation of peace and for prevention and detection of crime and shall not neglect none as mentioned in Form 12.3; whether done justice to his duty as intimation regarding damage

caused to the tenanted premises by D. Lavanya Sundari made on various occasions inter alia request for security to be provided made on various occasions ad libitum denied resultantly leads to criminal trespass with sharp weapon in my residence, damage the window glass by large stone and hammer and caused damage to the property and theft committed by D. Lavanya Sundari on 03/06/2024 and again also on 16/06/2024 criminal trespass in my residence committed by D. Lavanya Sundari under the influence of liquor and drugs and also use abusive language, intimidation, wrongful restraint, breach of peace with criminal intention to murder the family members and also to implicate in rape case to be provided to be produced before the Hon'ble Court and with Note with caution to file Affidavit if refused that the information could be denied to the Parliament hence shall be also denied to applicant as mandated under the proviso of section 8 of the 'Right to Information Act, 2005.

21) Provide copy of attendance register of Shri. Abhishek Mondal, Sub Inspector, PS Aberdeen for the previous two years as applicant in spite of repeated visit in the PS Aberdeen in pursuit of its own case found always not available in PS Aberdeen furthermore it is believed that lots of matter related to cognizable cases is pending with him including our 04 nos. of cases resultantly harassed the poor citizens, caused mental agony, depression, economic loss to poor people for writing RTI applications, economic loss to poor people to compel to file Voluminous Reminders again and again, wastage of time and also whether according to the guidelines issued by the Hon'ble Supreme Court Of India in Writ Petition (Criminal) No. 68 of 2008 (Lalita Kumari -Vs- Govt. of U.P & Others) mandates registration of FIR under section 154 of the Code of Criminal Procedure, 1973 whereby preliminary enquiry should be made in time bound manner and in any case should not exceed 07 days and ipso jure action must be taken against Shri. Abhishek Mondal, Sub Inspector, PS Aberdeen under section 166 A of the Indian Penal Code, 1860 who omitted his obligatory duty to register the FIR if information received by him discloses Cognizable Offence to be provided to produce before the Hon'ble Court and with Note of caution to file Affidavit if refused that the information could be denied to the Parliament hence shall be also denied to applicant as mandated under the proviso of section 8 of the 'Right to Information Act, 2005."

8. The CPIO furnished a reply to the Appellant on 18.07.2024 stating as under:

"1. Enquiry is under progress. Hence, the information sought by the applicant is exempted under the ambit section 8(1)(h) of RTI Act, 2005.

2. Certified copy of GD Entry is available.

3. The requisite information is related to PIO (CID). Since the information pertains to CAW cell, SP CID/PIO (CID), the requisite information will be furnished by the PIO (CID) with reference to this office letter No. ((SP(D) * SA / R * TI / 106) / 2024) / 3006 dated 02/07/2024.

4. Enquiry is under progress. Hence, the information sought by the applicant is exempted under the ambit section 8(1)(h) of RTI Act, 2005.

5. Enquiry is under progress Hence, the information sought by the applicant is exempted under the ambit section h of RTI Act, 2005

6. Enquiry is under progress. Hence, the information sought by the applicant is exempted under the ambit section 81(h) of RTI Act, 2005

7. The information sought by the applicant is exempted under the ambit section 8(10) of RTI Act, 2005

8. Enquiry is under progress. Hence, the information sought by the applicant is exempted under the ambit section S(1)(h) of RTI Act, 2005.

9. The information sought by the applicant is exempted under the ambit section 8(1)(j) of RTI Act, 2005.

10. The information sought by the applicant is exempted under the ambit section 8(1)(j) of RTI Act, 2005.

11. The information sought by the applicant is exempted under the ambit section 8(1)(j) of RTI Act, 2005.

12. to 18. The information sought by the applicant is exempted under the ambit section 8(1)(j) of RTI Act, 2005.

19. As per the record of P Aberdeen, No PIR was registered on the complaint dated 19/10/2023.

20. Enquiry is under progress Hence, the information sought by the applicant is exempted under the ambit section 1h of RTI Act, 2005.

21. The information sought by the applicant is exempted under the ambit section 8(1)(j) of RTI Act, 2005"

9. Being dissatisfied, the appellant filed a First Appeal dated 05.07.2024. The FAA vide its order dated 20.08.2024, held as under.

"The undersigned being the First Appellate Authority has carefully considered the appellant's RTI application and the reply given thereon by the PIO/SP(D)SA Admitting an appeal, hearing notices vide No. DGP/RTI/Appeal/14 /2024/1654 dated 26/07/2024, No. DGP/HTI/Appeal/14/2004/1673 dated 30/07/2024 and DGP/RTI/Appeal/14/2024/1709 dated 06/08/2024 was served to the Appellant to appear on 26/07/2024 at 1230 hrs, on 05/08/2024 at 1100 hrs and on 09/08/2024 at 1230 hrs respectively, but the appellant neither turned up to the hearing notices nor given any reason for not appearing before the undersigned. Further, a letter

dated 12/08/2024 has been received from appellant requesting for issuance of next date of hearing, in pursuance the letter, again a hearing notice was issued vide letter No DOP/SEI/Appeal/14/2024/1785 dated 13/08/2024 and instructed the appellant to appear for hearing on 16/08/2024 at 1230 hrs but, the appellant has not appeared for hearing till 1700 hrs or given any reason thereof Hence, an Ex-parte order is being issued and the decision of the Public Information Officer /SP(D) Beuth Andaman is therefore upheld. The appeal in accordingly disposed of."

10. Feeling aggrieved and dissatisfied, Appellant approached the Commission with the instant Second Appeals.

Relevant Facts emerged during Hearing:

The following were present:-

Appellant: Present through video conference.

Respondent: Shri Ajay Kumar Rai, Dy. S.P. appeared through video conference.

11. Proof of having served, copies of the above Second Appeals on respondent while filing the same in CIC are available on record.

12. The Appellant inter alia submitted that he was not satisfied with the replies given by the Respondent in above cases as desired information was not provided. He reiterated that no information had been provided to him till date despite the passage of several months. He submitted that the police authorities had failed to discharge their obligations under the RTI Act and sought strict action against the PIO under the Act. He also alleged that the lack of response was deliberate, given the nature of his complaints against certain police officers and insisted that he had a right to know the action taken on his grievances and related records.

13. The Respondent while defending their case inter alia submitted that they had already replied to the RTI applications vide letters dated 16.05.2024, 18.09.2024 and 18.07.2024 as per the provisions of the RTI Act. He further submitted that the Appellant had been filing repetitive and voluminous RTI applications, which were extremely difficult to process due to their open-ended and narrative nature.

Decision:

14. The Commission after adverting to the facts and circumstances of the case, hearing both the parties and perusal of the records, observes that the Appellant has framed his queries in an excessively verbose, narrative, and argumentative manner, resembling a continuous narration or a grievance petition rather than seeking clearly defined and specific information as per Section 2(f) of the RTI Act. The nature and language of the application reveal a pattern of repeated, ambiguous, and vague

queries couched in speculative language. Instead of clearly identifying documents or records required, the Appellant has written voluminous and convoluted statements, raising questions that are rhetorical in nature and incapable of eliciting precise replies.

Such drafting creates ambiguity and places an undue burden on the Respondent, which cannot be justified under the RTI framework.

15. The Commission is of the considered opinion that such use of the RTI mechanism amounts to an abuse of the process and appears to be aimed more at harassment than legitimate information-seeking. The RTI Act is intended to promote transparency and accountability, not to be used as a tool for vendetta or vague fishing inquiries.

16. The Commission would like to refer to the observations of the Supreme Court in the case of *CBSE v. Aditya Bandopadhyay* (2011) 8 SCC 497 which are as follows:

"35. At this juncture, his necessary to clear some misconceptions about the RTI Act. The RTI Act provides access to all information that is available and existing. This is clear from a combined reading of section 3 and the definitions of 'information' and 'right to information' under clauses and o) of section 2 of the Act. If a public authority has any information in the form of data or analyzed data, or abstracts, or statistics, an applicant may access such information, subject to the exemptions in section 8 of the Act. But where the information sought is not a part of the record of a public authority, and where such information is not required to be maintained under any law or the rules or regulations of the public authority, the Act does not cast an obligation upon the public authority to collect or collate such non- available information and then furnish it to an applicant."

.....

"67. Indiscriminate and impractical demands or directions under the RTI Act for disclosure of all and sundry information (unrelated to transparency and accountability in the functioning of public authorities and eradication of corruption) would be counter-productive as it will adversely affect the efficiency of the administration and result in the executive getting bogged down with the non-productive work of collecting and furnishing information. The Act should not be allowed to be misused or abused, to become a tool to obstruct the national development and integration, or to destroy the peace, tranquillity and harmony among its citizens. Nor should it be converted into a tool of oppression or intimidation of honest officials striving to do their duty. The nation does not want a scenario where 75% of the staff of public authorities spends 75% of their time in collecting and furnishing information to applicants instead of discharging their regular duties. The threat of penalties under the RTI Act and the pressure of the authorities under the RTI Act should not lead to employees of public authorities

prioritizing 'information furnishing', at the cost of their normal and regular duties."

8. In view of the above observations and the submissions of both parties, the Commission finds no merit in the appeal. The Respondent's failure to place the alleged reply on record is taken note of; however, in light of the nature of the RTI application and the lack of specificity, no further directions are considered necessary. The Commission, however, advises the Respondent to be more diligent in uploading replies on the CIC web portal and maintaining proper documentation in RTI matters.

The appeal is disposed of accordingly.

Vinod Kumar Tiwari () Information Commissioner ()
Authenticated true copy (!) (S. Anantharaman) Dy. Registrar 011- 26181927
Date Copy To:

The FAA The DIGP (Intelligence), A & N Islands, Port Blair - 744101
Recommendation(s) to PA under section 25(5) of the RTI Act, 2005:-

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